



# SAMPLE APARTMENT LEASE

|               |
|---------------|
| New Move-In   |
| Transfer From |
| Renewal       |

The Apartment Lease is made this \_\_\_\_\_ day of \_\_\_\_\_ between \_\_\_\_\_, authorized agent for owner and the following person(s): \_\_\_\_\_

\_\_\_\_\_ agrees to rent the herein below described Premises to only the above listed person, and if more than one person, shall each be jointly liable hereunder and all are collectively referred to as "Resident".

Property: \_\_\_\_\_ Apartment: \_\_\_\_\_ Parking Sp #: \_\_\_\_\_ Garage/Storage: \_\_\_\_\_  
Address: \_\_\_\_\_ (street) \_\_\_\_\_ (City, State, Zip)

The following items of furnishings and personal property are included herein:

| MONTHLY RENT, NON-REFUNDABLE FEES AND REFUNDABLE DEPOSITS |        |                     |        |                     |        |
|-----------------------------------------------------------|--------|---------------------|--------|---------------------|--------|
| MONTHLY RENT                                              |        | NON-REFUNDABLE FEES |        | REFUNDABLE DEPOSITS |        |
| Rent                                                      | \$0.00 | Administrative Fee  | \$0.00 | Security Deposit    | \$0.00 |
| Pet Rent                                                  | \$0.00 | Pet Fee             | \$0.00 | Pet Deposit         | \$0.00 |
| Utility                                                   | \$0.00 | Application         | \$0.00 | Remote Deposit      | \$0.00 |
| Other                                                     | \$0.00 | Other               | \$0.00 | Other               | \$0.00 |
| Other                                                     | \$0.00 | Other               | \$0.00 | Other               | \$0.00 |
| Sub Total                                                 | \$0.00 |                     | \$0.00 | Total Refundable    | \$0.00 |
| Sales Tax* 0.00% (rate)                                   | \$0.00 |                     |        |                     |        |
| Monthly Total                                             | \$0.00 |                     |        |                     |        |

\_\_\_\_\_ has the right to adjust the rent should there be any change in the percentage of the tax charged by any municipality, all in accordance with A.R.S. § 33-1314.

**1. PAYMENTS AND PRORATIONS:** Upon execution, Resident agrees to pay the full monthly rent plus tax, if applicable, security deposit and non-refundable fees in the form of certified funds or cashier's check. On the first day of the following month, Resident shall pay the prorated rent, other and taxes as defined below. Resident agrees to pay in advance the total due monthly in the form of a check or certified funds on or before the first calendar day of each and every month, at the Apartment Community or such other place as \_\_\_\_\_ may designate by written notice to the Resident. Only one check shall be accepted per Apartment per month.

Prorated Rent, other and taxes: \$0.00 For the partial month ending: \_\_\_\_\_  
**2. NON-REFUNDABLE FEES:** Upon execution, Resident agrees to pay a non-refundable administrative fee, pet fee, and other fees as described above, which shall not be refunded under any circumstances.

**3. DEPOSITS:**  
**3.1 Refundable Security Deposits:** Concurrently with the execution hereof, Resident agrees to pay in full to \_\_\_\_\_ the Refundable Security Deposits, as described above, as security for the faithful performance of Resident's obligations hereunder. \_\_\_\_\_ shall be entitled to deduct from the Refundable Security Deposits the sum of \$10.00 for each apartment key not returned by the Resident upon vacating the Premises. Such amounts as may be necessary to remedy Resident's defaults in the payment of rent, other charges equivalent to rent and utility charges, and such other amounts as may be necessary to compensate \_\_\_\_\_ for damages to the Premises occasioned by Resident's non-compliance with the provisions of paragraph 9 & 11 below. The taking or application of security as provided herein shall not preclude \_\_\_\_\_ from exercising any other remedy of this Lease or Resident's violation of the Arizona Residential Landlord and Tenant Act. No portion of the Refundable Security Deposit may be used by Resident as credit for rent owed to termination or expiration of this lease. Resident shall not be entitled to interest accrued on security deposits.

**3.2 Conditions for Refund/Notice and Move-Out:** Resident must give \_\_\_\_\_ a written notice of intent to vacate not less than THIRTY (30) days prior to the ending date of this Apartment Rental Agreement or THIRTY (30) days prior to the periodic due date (1st day of each month) as defined in paragraph 1. (For example, notice to vacate premises October 31 would have to be received on, or no later than October 1st. Notice submitted after October 1st will be construed as effective the first of the following month for a move out of November 30). The full term of the Apartment Rental Agreement must have ended. At the time of move-out all rents must be Paid in Full. The Resident must leave the apartment in clean and habitable condition, normal wear and tear excepted. Provisions for move-out inspection will be made by \_\_\_\_\_ upon receipt of the written THIRTY (30) day notice of intent to vacate. The Resident must supply \_\_\_\_\_ complete information of forwarding address for notification of disposition of deposit, and/or return of deposit, if applicable. With full compliance with this Apartment Rental Agreement, and FULL compliance of the Rules and Regulations or the House Rules and/or attached addendum. FULL compliance of all applicable statutes and upon demand for return of refundable deposits \_\_\_\_\_ may apply those deposits and shall timely deliver to the Resident any remaining balance of refundable deposits.

**4. TERM:** Lease Term in Months \_\_\_\_\_, plus \_\_\_\_\_ days commencing on \_\_\_\_\_ and ending on \_\_\_\_\_  
(term) (days)  
The term of this Rental Agreement shall be for the term described above. Upon expiration, this Agreement shall automatically continue on a month-to-month basis at a rate which shall be \$100 above market rent until a new Rental Agreement is executed, or until either \_\_\_\_\_ or Resident terminates this Agreement by delivering to the other a written termination notice at least thirty days prior to the end of any calendar month as defined in section 3.2 above.

**5. TERMINATION PRIOR TO LEASE EXPIRATION:** Except as allowed by law, if resident terminates prior to the term of the agreement for any reason, the resident shall be obligated to give one month written notice, as stated above. In addition to the rent due for the 30-day notice period, a buy-out fee in the amount of one month's rent will be due and payable by certified check or money order upon submission of the notice to vacate. Further, the resident shall be obligated to pay any move-in incentives given at the time of move-in as per section 5.1. In the event that all buy out fees, including concession reimbursement, are not paid by the time of move out, Resident will be charged an additional month's buy out fee. The resident also agrees to leave apartment clean and undamaged less normal wear and tear.

**5.1** If Resident is given any rent deduction, rebate, bonus, property, or anything of value, as an inducement to enter into this agreement, it is agreed that Resident shall be obligated to reimburse Management for the full amount of the incentive upon submission of notice to vacate in the event Resident is terminating the lease prior to term. .

**6. LATE CHARGES:** Rent is due on the first day of each month. If rent is not paid by the 3rd, a late charge of \$50.00 will be added to the rent. An additional charge of \$10.00 shall be added for each day thereafter, until rent is paid in full. Certified check or cashier's check must be used if rent is late.

**7. SPECIAL PROVISIONS:**

RESIDENT HAS READ AND RECEIVED AN EXECUTED COPY OF THIS AGREEMENT, INCLUDING THE TERMS ON THE REVERSE, APARTMENT INSPECTION/CHECKOUT REPORT, AND THE COMMUNITY POLICIES, SCHEDULE "A", WHICH RESIDENT AGREES TO ABIDE BY, INCLUDING ANY AMENDMENTS THERETO AND WARRANTS THAT ALL BLANKS HAVE BEEN ACCURATELY COMPLETED OR OTHERWISE MARKED "NOT APPLICABLE (N/A)". THIS RENTAL AGREEMENT IS A LEGALLY BINDING CONTRACT. IF YOU DO NOT UNDERSTAND THIS AGREEMENT, SEEK COMPETENT ADVISE. FALSE INFORMATION GIVEN ON THE RENTAL APPLICATION SHALL ENTITLE \_\_\_\_\_ TO TERMINATE THIS AGREEMENT.

|                      |      |                              |      |
|----------------------|------|------------------------------|------|
| Resident (Signature) | Date | Resident (Signature)         | Date |
| Resident (Signature) |      | Resident (Signature)         | Date |
| Resident (Signature) | Date | Subagent for Owner Signature | Date |



## SAMPLE APARTMENT LEASE

**8. RETURN CHECK CHARGE:** Resident agrees to pay as additional rent an administrative fee of \$35.00 for any check that is dishonored for payment. This fee is in addition to applicable late charges. \_\_\_\_\_ reserves the right to demand monthly rent in the form of certified funds if personal checks are dishonored for payment.

**9. UTILITIES:** In addition to the rent, Resident shall pay for all public utilities charged against the Premises except for common area water, common area gas, and common area electricity. Resident agrees to furnish \_\_\_\_\_ receipt for utilities prior to accepting occupancy. Resident will be billed and shall pay a pro-rata share of the water, sewer and trash removal expense based on the use of a Ratio Utility Billing System. The method used to allocate water and sewer costs are based on the number of water fixtures per unit; trash allocations are based on the number of bedrooms per unit. Any and all billing fees associated with the generation of said utility bills are to be paid by Resident. Resident acknowledges that rates may fluctuate from month to month, and waive their right to a 30-day advance notice of change. Resident further agrees that these charges and fees shall be considered additional rent, and failure to remit payment by the due date will result in default under the terms of this lease.

**10. INDEMNITY:** \_\_\_\_\_ shall not be liable and Resident shall hold \_\_\_\_\_ harmless from any and all claims, losses, demands or other liability whatsoever for any injury however suffered by or occurring to any person whatsoever, for any damages or injury however suffered by or occurring to any person, including, without limitation, guests at the Apartment Community, which arise or are caused by any act of commission or omission of the Resident, Resident's occupants, family, guests, invitees or pets. Notwithstanding anything appearing in this paragraph to the contrary, the Resident does not agree to the exculpation or limitation of any liability of \_\_\_\_\_ arising under law or to indemnify \_\_\_\_\_ or that liability or costs connected therewith. RESIDENT IS INFORMED THAT MANAGEMENT'S INSURANCE DOES NOT COVER RESIDENT'S PROPERTY, ACTS, OR OMISSIONS. IT IS REQUIRED THAT RESIDENT OBTAIN "RENTER'S INSURANCE". Said renter's insurance policy must have a minimum \$\_\_\_\_\_ liability limit.

### 11. CONDITION AND CARE OF PREMISES

**11.1** Resident shall not change locks, paint, decorate or alter in any way the premises without the prior written permission from \_\_\_\_\_ and shall not interfere with the quiet use and enjoyment of other residents of the community. Further, Resident shall comply with all state statutes and city ordinances which are applicable to the premises and common areas. Resident has carefully inspected and finds them to be in a clean, habitable, undamaged condition except as may be noted on the apartment inspection/check out report. This report will be used to determine refund of security deposit amount at the end of Resident's tenancy. \_\_\_\_\_ shall not be liable to Resident's family, invitees and occupants for any damages to person or property caused by the act or neglect by resident, or any other resident or non-resident of the Apartment Community.

**11.2** Resident agrees to exercise reasonable care in the use of the Premises, furnishings and Apartment Community and to maintain and redeliver the same in clean and safe condition, free from damage, unsightly debris, equipment or decor. Resident agrees to pay for all repairs, replacements and maintenance caused by his misconduct or negligence, that of his family, invitees, and occupants, and, at \_\_\_\_\_ option, such charges shall be due and payable immediately or shall be regarded as additional rent to be paid no later than the next date on which rent is due following such repairs. Resident shall immediately report to \_\_\_\_\_ in writing when any locks, equipment, fixtures, furnishings or portion of the Premises have been damaged or out of repair. Any damage to the Premises, fixtures, furnishings contained therein which is not otherwise explained in writing to \_\_\_\_\_ within three (3) days after occurrence thereof, shall be presumed to have resulted from the Resident's neglect. Resident shall not allow an undrivable vehicle to remain on the common areas or any other portion of the Apartment Community for more than 24 hours. No car repairs are to be made in or on the common areas or any other portion of the Apartment Community. Any vehicle inoperable or in disrepair shall be subject to towing at the vehicle owner's expense.

**11.3** Resident acknowledges that the use of the swimming pool area, clubroom, and other related amenities at the Apartment Community are being furnished by \_\_\_\_\_ and that no guard or other supervision over the use of the swimming pool and facilities will be provided; and, fully understands the risks associated with the foregoing. Resident hereby assumes for himself, his family, occupants, and guests any and all risks associated with the use of said pool and facilities, and agrees that \_\_\_\_\_ shall not be liable for any harm sustained by resident, his family, occupants, or guests in connection with said risks. Resident further understands and agrees that the use of any facility or amenity on the Apartment Community is restricted to Resident and family, and that express consent must be given by \_\_\_\_\_ prior to another person's such use of facility or amenity.

**12. USE:** The leased Premises shall be occupied and used only as a residential unit, any other use is prohibited. The unit shall be occupied only by the persons set forth on this lease.

**13. ACCESS:** Resident shall allow \_\_\_\_\_ access at all reasonable times to the Premises for the purpose of inspection or to show said apartment to prospective purchasers, mortgagees, or any other persons having legitimate interest therein, or to make necessary repairs or improvements. \_\_\_\_\_ shall give resident at least two (2) days notice of management's intent to exercise its right of access, except in cases of emergency where notice shall be impractical, or where the resident has abandoned the premises or had failed to properly maintain the premises. In the event of the death of a resident, access will be granted to co-applicant only, or if no co-applicant exists, Management shall give access to those parties indicated on rental application. Residents request for repairs shall constitute Resident's consent to enter the premises for inspection or repair.

**14. DEFAULT:** The failure by either Resident or \_\_\_\_\_ to fully perform this rental agreement in any manner shall entitle either party to take all actions against the defaulting party as shall be provided by law. All costs, attorney fees, any other expenses in enforcing this agreement shall be paid to the prevailing party by the losing party. Resident further agrees that any and all fees incurred by \_\_\_\_\_ for legal process service are to be paid by Resident, including a \$25.00 charge for any legal notice served upon Resident. Resident waives any

**15. SUBORDINATION:** This Agreement is and shall remain subordinate to any ground lease, mortgage, trust deed or any encumbrance or security instrument now existing hereafter to be placed upon the Premises and to any modifications, extensions, replacements and advances in connection therewith.

**16. ABANDONMENT:** If the resident abandons tenancy as defined in A.R.S. 33-1370(H); and \_\_\_\_\_ reasonably determines that the cost of the moving, storing, and selling the Resident's personal property would exceed the amount that would be realized from the sale thereof, \_\_\_\_\_ may, at its option destroy or otherwise dispose of the Resident's

**17. NON-WAIVER:** Failure of \_\_\_\_\_ to insist upon the strict performance of the terms, covenants and conditions herein contained that shall not be deemed a waiver of any \_\_\_\_\_'s rights or remedies herein. If any Court declares a particular provision of this Agreement to be invalid or illegal, all other terms of this Agreement will remain in effect and both \_\_\_\_\_ and Resident will continue to be bound by them.

**18. BINDING EFFECT:** This agreement shall be binding and inure to the benefit of the heirs, executors, administrators, successors and assigns of \_\_\_\_\_ and Resident.

**19. HOUSE RULES:** The rules provided in the Community Policies (Schedule 2), the receipt of which is hereby acknowledged, and deemed a part of this Agreement and a breach of any rule by Resident or his guests shall constitute a default hereunder.

**20. FIRE, CASUALTY AND TAKING:** In the event the Premises shall be damaged or destroyed by fire, casualty or taking, the monthly rent payable hereunder by Resident shall be reduced or abated to the extent that such damages or destruction renders the Premises untenable, until such times as the Premises, or what remain thereof after a taking, shall have been repaired or restored to a tenable condition. Nothing contained herein, however, shall require or shall be deemed to require \_\_\_\_\_ or the owner of the Apartment Community so to restore or repair the Premises.

**21. ASSIGNMENT:** Resident shall not assign this Agreement to sub-let the Apartment or any part thereof.

**22. UTILITY COSTS ADJUSTMENT DURING LEASE TERM:** Management shall have the right, upon thirty (30) days notice to Resident, to increase the total rent due by an amount reasonably related to any increase in the cost of utilities including, but not limited to natural gas, electricity, sewer and water. Management, in its sole discretion, shall have the unilateral right during this lease to (i) individually meter or submeter utilities, (ii) allocate a reasonable share of utilities to resident without metering utilities, or (iii) directly bill Resident for all utilities, provided however, that management shall not charge Resident an amount for utilities which is more than what Management paid for such utilities.

**23. DRUG USE, ILLEGAL ACTS:** Resident shall use the premises in compliance with civil and criminal law. Resident and Resident's guests and invitees shall not possess, consume, sell or distribute on the premises any illegal drug or controlled substance as defined by law and shall not conduct themselves in any manner which would pose a danger to other residents or constitute a public nuisance. Violation of this paragraph, which results in an "Irreparable Breach" of the Rental Agreement as defined in the Act, will be cause for Owner to terminate the rental agreement and proceed to evict Resident immediately.

**24. DISCLOSURE OF MANAGEMENT AND NOTICES:** \_\_\_\_\_, with offices at \_\_\_\_\_, is authorized to act for and on behalf of the owner of the Apartment Community for purposes of service of process and for receiving or receipting notices or demands. To be effective, all notices, demands and other communications directed to \_\_\_\_\_ shall be in writing and personally delivered during office hours, or mailed by certified mail, return receipt requested, postage prepaid to \_\_\_\_\_ at the above address or to the resident manager at the office in the Apartment Community. Service or legal process should be made upon \_\_\_\_\_ through its statutory agent as registered with the Arizona Corporation Commission. (Be advised that Management and Management's Employees are agents and represent the owner).

**25. SECURITY:** Resident hereby agrees and acknowledges that Management and Owner shall not provide and shall have no duty to provide any security services to Resident or the community. Resident shall look solely to the public police force for security protection and Resident agrees and acknowledges that protection against criminal action is not within the power of Management and Owner, and, even if from time to time Management provides security services, those services cannot be relied upon by Resident and shall not constitute a waiver of, or in any manner modify that above agreement. Management and owner shall not be liable for failure to provide adequate security services or for criminal wrongful actions by others against Resident, Resident's relatives or Resident's guests. Resident further agrees to provide for his own safety and agrees to contact Management and Police Department immediately should criminal activity of any kind be witnessed.

**26. LANDLORD/TENANT ACT:** As per A.R.S. 33-1322, a free copy of the Arizona Residential Landlord and Tenant Act is available through the Arizona Secretary of State's Office.

The community manager of the premises is:

\_\_\_\_\_  
Agent for Owner/Manager

\_\_\_\_\_  
Address

\_\_\_\_\_  
Phone



## SAMPLE COMMUNITY POLICIES

Property: \_\_\_\_\_ Apt #: \_\_\_\_\_

Resident(s): \_\_\_\_\_  
\_\_\_\_\_  
\_\_\_\_\_

*Welcome!!!* We are happy you have chosen our community and we hope you enjoy your new home. In order to ensure the peaceful enjoyment of all Residents, the following rules and regulations have been established. Failure to comply with these rules and regulations may, at the discretion of management, be grounds for termination of this apartment lease agreement. We appreciate your residency and desire your cooperation as we mutually strive to maintain and administer these premises and facilities.

### 1. REQUEST FOR SERVICE

All maintenance and service requests shall be made directly to the Management Office. In the case of an emergency please contact the Management staff by calling the office number. Emergencies include but are not limited to fire, flood, electrical shortage, and sewer backups.

### 2. PARKING FACILITIES

All vehicles must be registered with the Rental Office and shall display a valid parking permit, if applicable. No automobile, trailer, boat, motorcycle, camper or other motorized vehicle shall be stored or repaired on the Premises. Vehicles which are inoperable or parked improperly or do not have a current registration tag will be subject to towing at the vehicle owner's expense. For the safety and protection of all residents the maximum speed limit is 10 mph in the community and please drive carefully.

### 3. GUESTS

Residents are responsible and liable for the conduct of their guests. Overnight houseguests shall be limited to stays of not more than one (1) week. Thereafter any guests shall be considered a permanent resident and must complete a rental application and be approved to remain on premises. All guests must be accompanied by a resident when using project facilities.

### 4. LOCKS

Residents are prohibited from adding, changing or in any way altering locks installed on the doors of apartments. Replacement keys shall be at a cost of \$10, and lock changes (if necessary) will \$40. For liability reasons, in the event of an after office hours lock out, Resident will be required to contact a locksmith in order to gain access. Otherwise, Resident must wait until the next business day to be issued replacement keys.

### 5. GROUNDS AND LANDSCAPE

The community maintains a high degree of grounds maintenance. Management requests that you help in maintaining our high standards. Residents will be required to pick up their own entrance areas, patios, balconies, and storage areas. The sidewalks, driveways, and common areas shall not be obstructed nor used for any purpose other than entering and exiting to and from unit.

### 6. BALCONIES AND PATIOS

Balconies and patios must be kept clean and clear of storage items. Hanging of clothes, garments, sunshades, or other personal belongings will not be permitted on the balconies or patios at any time. The only items permitted are patio furniture, flower boxes/pots, and plants. They are not to be used for storage under any circumstances. For liability reasons the use and/or storage of barbecues are not permitted on patios.

### 7. DRAPERIES/BLINDS

Our draperies/blinds are not to be removed or replaced without consent of Management. Window treatments must have white linings or a white shade. Bed linens, towels, tin foil, flags, reflector items etc. are not acceptable.

### 8. PERSONAL PROPERTY

It is required that all Residents obtain renter's insurance for damages or losses caused by fire, theft, flood, etc., as the property insurance policy covers only buildings and contents belonging to the property. Resident agrees to carry coverage for the duration of their residency with a minimum liability limit of \$25,000.

### 9. PETS

No pets allowed.

### 10. NOISE

The Resident's family and guests shall have due regard for the comfort and enjoyment of all residents in the apartment community. Televisions, stereos, radios and musical instruments will not be played at such a volume or time that can be heard outside the apartment or that will disturb persons in other apartments.

### 11. PEST CONTROL

If you have a special problem with pests, please notify the office. Residents are asked to assist our pest control by maintaining a high standard of good housekeeping.

### 12. STORAGE

No goods or materials of any kind or description, which are combustible or would increase fire risks, shall be placed in storage areas. Storage of personal property shall be at Resident's risk and Management shall not be responsible for any loss or damage.

### 13. DUMPSTERS

There are dumpsters conveniently located throughout the property. Please ensure that your trash is placed in plastic bags and securely tied before placing into the dumpster.

### 14. WATERBEDS

Waterbeds are allowed subject to Management's approval and upon receiving a copy of the certificate of insurance for resident.

### 16. SIGNS

Residents shall not display any signs, placards or exterior lights in or about the Apartment Building or any building, which is part of it without permission of Management.

### 17. BICYCLES

No Bicycles, baby strollers or other wheeled apparatus shall be parked on the sidewalks, stairways, or other public areas, except as specifically permitted in writing by Management.



## SAMPLE COMMUNITY POLICIES

### 18. RECREATION

Resident agrees to abide by rules and regulations established by Management for the use of recreational and service facilities.

### 19. LAUNDRY ROOM POLICIES

Open Monday through Saturday from 8:00am to 5:00pm (subject to change). Management is not responsible for lost or stolen items. Smoking is not permitted at any time.

### 20. FITNESS CENTER POLICIES

The fitness centers are here for your enjoyment. To ensure your comfort and safety, we ask that you comply with the following:

- A. This facility is for the exclusive use of our Residents and their accompanied guests. Residents under the age of 18 must be accompanied by parent or guardian.
- B. The doors must be kept unlocked at all times.
- C. Appropriate attire is required. Please do not enter the facility in a wet swimming attire.
- D. No Food or Beverages are permitted, with the exception of spill proof water bottles, etc.
- E. Smoking is not permitted at any time.
- G. Hours of operation are posted and subject to change without prior written notice.
- H. Resident(s) who choose to use the facilities, do so at their own risk and will not hold MC Management or ownership in the event of injury.

### 21. DELIVERY OF PACKAGES / PARCELS OR MAIL

Resident hereby gives permission to Landlord to accept any packages/parcels or mail in the event that package/parcel or mail does not fit in provided mail receptacle. Resident releases Landlord from liability in the case of fire, theft, loss or damage to said parcels. As postal carrier, or other parcel delivery service is required to notify Resident of delivery status and location of package, Landlord shall not be responsible to notify Resident of delivery of any parcel.

### 22. OCCUPANCY

The Tenant shall not assign this lease, sublet the premises, give accommodation to any roomers or lodgers, or permit the use of the premises for any purpose other than as a private dwelling solely for the Tenant and his/her family. The Tenant agrees to reside in this unit and agrees that this unit shall be the Tenant's and his/her family's only place of residence.

### 23. DROP BOXES

Any use of drop box / slot by the Resident is used at the Resident's own risk and is for the sole benefit and convenience of Resident. Placement of anything, including notices or rent does not constitute delivery to MC Management.

Resident Signature \_\_\_\_\_ Date \_\_\_\_\_

Resident Signature \_\_\_\_\_ Date \_\_\_\_\_

Resident Signature \_\_\_\_\_ Date \_\_\_\_\_

Resident Signature \_\_\_\_\_ Date \_\_\_\_\_

Agent for Owner/Management Representative \_\_\_\_\_ Date \_\_\_\_\_



## SAMPLE PARKING, TOWING & GARAGE ADDENDUM

### Schedule 3

Property: \_\_\_\_\_ Apt #: \_\_\_\_\_  
 Resident(s): \_\_\_\_\_  
 \_\_\_\_\_  
 \_\_\_\_\_  
 Parking #: \_\_\_\_\_ Garage #: \_\_\_\_\_

Residents are asked to park in assigned spaces only. Unauthorized parking will result in tow away at vehicle owner's expense. Please do not back into parking spaces; this can cause damage.

1. All vehicles parked in assigned parking spaces and/or garages obstructing ingress or egress, in fire lanes, handicapped parking spaces or in front of dumpsters **will be towed immediately at vehicle owner's expense.**
2. All vehicles must be in operable condition and displaying current registration. All vehicles in violation of this policy will be tagged and towed at vehicle owner's expense **within 24 hours.**
3. Commercial vehicles, recreational vehicles, boats, trailers, RV's, etc. parked on property **will be towed immediately at vehicle owner's expense.**
4. Repair work, oil changes and car washing are not allowed at any time.
5. Resident agrees to use the garage for vehicle parking. At no time may articles dangerous or detrimental to life or health of the occupants of the community be stored, kept or handled which includes but is not limited to, straw, excelsior, cotton, paper stock, rags, junk or any other flammable material that could cause a fire hazard.
6. No improvements or alterations shall be made to the premises without prior written consent of lessor. In addition, lessee agrees to protect the walls of said premises and not to place any nails, screws, bolts, hooks or additional locks upon the doors, floors, walls or ceilings. Electric and lighting that is currently supplied to the premises shall not be rewired.
7. The lessor does not insure any stored goods, and lessor does not undertake to arrange or obtain insurance on the goods stored. Lessor has no liability for loss or damage to residents property whether by fire, theft, vandalism, mysterious disappearance, flood or otherwise.
8. Garage/Parking stall is for use of resident only and may not be sublet.
9. Garage must be kept closed. Any damage to the garage by the resident will be repaired at resident's expense.
10. Residents with garages will receive one garage/gate transmitter. If lost or stolen, there is a **\$50.00** replacement charge. Additional remotes are available for an additional deposit.
11. Any vehicle or stored item shall be deemed abandoned if not removed within 10 days after termination of lease agreement. Upon such abandonment lessor may tow or remove all personal property therein and sell it at a public auction and the proceeds from the sale thereof may be applied to expense for removal notice and advertisement of sales and for lost rental revenue.

Resident Signature \_\_\_\_\_ Date \_\_\_\_\_

Resident Signature \_\_\_\_\_ Date \_\_\_\_\_

Resident Signature \_\_\_\_\_ Date \_\_\_\_\_

Resident Signature \_\_\_\_\_ Date \_\_\_\_\_

Agent for Owner/Management Representative \_\_\_\_\_ Date \_\_\_\_\_



## SAMPLE PET ADDENDUM

### Schedule 4

Property: \_\_\_\_\_ Apt #: \_\_\_\_\_  
Resident(s): \_\_\_\_\_  
\_\_\_\_\_  
\_\_\_\_\_

\_\_\_\_\_  
\_\_\_\_\_  
Initial(s) Resident certifies that they do not have a pet at this time.  
Resident certifies that they do not have a pet at this time.

Owner gives consent to Resident to keep the following pet(s) on the premises:

| Name | Breed/Description | Age | Weight | Color |
|------|-------------------|-----|--------|-------|
|      |                   |     |        |       |
|      |                   |     |        |       |

MC Management allows Resident(s) to keep a pet on the premises providing Resident understands and agrees to abide by MC Management current pet policies as described below:

MC Management shall determine in its sole discretion any default of this agreement to permanently remove the pet from the premises immediately after receiving written notice that permission has been revoked.

- A. Resident shall keep only the type, size, and number of pets authorized by the Property Manager at the signing of this Addendum. Any change in Resident's pet status must be reported to the Property Manager for approval and authorization.

The number of pets allowed at this property is two (2).

There is a weight limit of 35lbs. per pet

Breed restrictions are as follows:

Doberman Pinscher, Rottweiler, Staffordshire terrier (Pit-bull), Chow and German Sheppard.

As an addition to the Security deposit for the leased apartment, Resident shall pay a refundable Pet Deposit in the amount of

\$0.00 per pet. The non-refundable pet fee of \$0.00 will not be returned under any circumstances.

Pet deposits are subject to refund only upon move out of the premises. Any and all pet damage will be deducted from pet deposit with the remainder to be refunded within the statutory period of time, provided no other balances exist (i.e., rent, legal fees or non-pet damage). In the event the pet deposit is not sufficient to cover the expense of pet damages, Resident agrees to immediately make payment to Landlord or Landlord's collection agent.

- B. In addition to the apartment rent there will be a monthly pet rent of \$0.00 per pet.
- C. Resident shall not at any time allow the pet to be outside of the apartment without a leash and without the immediate presence and control of a responsible person. Leashes may not be longer than six (6) feet.
- D. Any pets found on the Premises without leash and without a Resident available or willing to retrieve it, shall cause appropriate officials to impound the pet.
- E. Resident shall walk his pet only in areas specified by the Property Manager, which shall not include landscaped areas, laundry rooms, the pool, club room, or other recreational areas. At no time shall Resident tie the pet to a porch area, tree or other fixture on the premises.
- If at any time, the pet deposits waste on the premises, Resident shall IMMEDIATELY remove and properly dispose of the waste into proper receptacle. Failure to do so will result in a \$200.00 fine per incident. If problem continues resident is subject to eviction proceedings.
- F. If, in management's sole opinion, my pet disturbs neighbors in any way (i.e., barking, whining or excessive foot traffic noise or scratching) or if the agreement is violated, management may immediately revoke pet privileges. Be advised that in the event pet privileges are revoked, the pet deposit will be forfeited.
- H. Cats **must** be kept indoors and must be litter box trained. Proof of neutered/spayed may be required.
- I. Resident hereby certifies that his/her pet is non-aggressive in nature, and further indemnifies and holds the landlord harmless from any injuries inflicted by his/her pet. In the event of pet damage or injury, Resident agrees to be responsible for any/all attorney's fees and court costs associated with such claim.
- J. Resident may be required to provide documentation from a licensed veterinarian for proof of vaccination if requested by management.

Resident Signature \_\_\_\_\_ Date \_\_\_\_\_

Resident Signature \_\_\_\_\_ Date \_\_\_\_\_

Resident Signature \_\_\_\_\_ Date \_\_\_\_\_

Resident Signature \_\_\_\_\_ Date \_\_\_\_\_

Agent for Owner - Management Representative \_\_\_\_\_ Date \_\_\_\_\_



## SAMPLE CRIME FREE LEASE ADDENDUM

*Schedule 5*

Property: \_\_\_\_\_ Apt #: \_\_\_\_\_  
Resident(s): \_\_\_\_\_  
\_\_\_\_\_  
\_\_\_\_\_

In consideration of the execution or renewal of a lease of the dwelling unit identified in the lease, Owner and Resident agree as follows:

**Resident, any members of the resident's household or a guest or other persons affiliated with the resident:**

1. Shall not engage in criminal activity, including drug-related criminal activity, on or near the said premises. "Drug related criminal activity" means the illegal manufacture, sale, distribution, use, or possession with intent to manufacture, sell, distribute, or use an illegal or controlled substance (as defined in Section 102 of the Controlled Substance Act [21 U.S.C.802])
2. Shall not engage in any act intended to facilitate criminal activity
3. Shall not permit the dwelling unit to be used for, or to facilitate criminal activity, regardless or whether the individual engaging in such activity is a member of the household, or a guest
4. Shall not engage in the unlawful manufacturing, selling, using, storing, keeping, or giving of an illegal or controlled substance as defined in A.R.S. 13-3451, at any locations, whether on or near the dwelling unit premises
5. Shall not engage in any illegal activity, including prostitution as defined in A.R.S. 13-3211, criminal street gang activity as defined in A.R.S. 13-105 and A.R.S. 13-2308, threatening or intimidating as prohibited in A.R.S.13-1202, assault as prohibited in A.R.S. 13-1203, including but not limited to the unlawful discharge of a weapon, on or near the dwelling unit premises, or any breach of the lease agreement that otherwise jeopardizes the health, safety, and welfare of the landlord, his agent, or other tenant, or involving imminent or actual serious property damage, as defined in A.R.S. 33-1368
6. VIOLATION OF THE ABOVE PROVISIONS SHALL BE A MATERIAL AND IRREPARABLE VIOLATION OF THE LEASE AND GOOD CAUSE FOR IMMEDIATE TERMINATION OF TENANCY. A single violation of any of the provisions of this added addendum shall be deemed a serious violation, and a material and irreparable non-compliance. It is understood that a single violation shall be good cause for immediate termination of the lease under A.R.S. 33-1377, as provided in A.R.S. 33-1368. Unless otherwise provided by law, proof of violation shall not require a criminal conviction, but shall be by a preponderance of the evidence
7. In case of conflict between the provisions of this addendum and any other provisions of the lease, the provisions of this addendum shall govern
8. This LEASE ADDENDUM is incorporated into the lease executed or renewed this day between Owner and Resident.
9. Shall permit all police generated reports to be used as direct evidence against me for eviction hearings.

Resident Signature \_\_\_\_\_ Date \_\_\_\_\_

Resident Signature \_\_\_\_\_ Date \_\_\_\_\_

Resident Signature \_\_\_\_\_ Date \_\_\_\_\_

Resident Signature \_\_\_\_\_ Date \_\_\_\_\_

Agent for Owner - Management Representative \_\_\_\_\_ Date \_\_\_\_\_





## SAMPLE MOLD & MILDEW ADDENDUM

### Schedule 6

Property: \_\_\_\_\_  
Resident(s): \_\_\_\_\_  
\_\_\_\_\_  
\_\_\_\_\_

Apt #: \_\_\_\_\_  
\_\_\_\_\_  
\_\_\_\_\_

Mold and Mildew are problems that are especially prevalent in high moisture areas, such as the Pacific Northwest. Mold and mildew spores are present in the environment and can't be eliminated. Excess moisture is the leading cause of mold and mildew growth indoors. However, most sources of moisture can be controlled by simple procedures under your control. In order to reduce the incident of mold and mildew, protect your own health and condition of your unit. Resident(s) agree to do the following:

1. Keep the humidity below 40%:
  - A. Use bathroom fans during and for 30 minutes after bathing or showering. If no fan is available, open window slightly for ventilation for the same amount of time.
  - B. Use the fan above the stove whenever cooking, or if no fan is available, open window slightly for ventilation
  - C. Use the fan in the laundry area during and for 20 minutes after using the washer and dryer, or if no fan
  - D. Cover fish tanks.
  - E. Only use electric space heaters indoors.
  - F. Use a dehumidifier during humid months.
  - G. Do not keep an excess number of house plants.
2. Keep the temperature down and provide adequate ventilation:
  - A. Keep heating between 50 and 75 degrees at all times.
  - B. Open multiple windows at least twice a week for 1 hour to allow cross ventilation of the dwelling.
  - C. Allow at least 1 inch between furniture and walls to aid ventilation.
  - D. Open closet doors to allow ventilation.
3. Clean regularly and thoroughly:
  - A. Clean bathrooms and kitchens with mold killing products.
  - B. If mold or mildew appears on walls, ceiling, floors, or around tub or sinks, immediately remove the mold or mildew.
4. Following is the cleaning method recommended by the EPA:
  - A. Mold growth can be removed with commercial cleaning products or a weak bleach solution (one cup bleach in one gallon of water). Wear gloves during cleanup and be careful not to spread the mold. Sensitive people who have to clean up mold should wear a tight fitting face mask.
  - B. Dry any water that spills from showers, sinks, etc.
  - C. Clean up spills onto carpets, rugs or floors and thoroughly dry the carpet or rug.
  - D. Regularly check and clean the window tracks and keep free of condensation.
4. Notify management immediately of excess moisture problems:
  - A. Water leakage, leaking plumbing, leaking tubs or showers, or running toilets.
  - B. If you have attempted to clean the mold or mildew and it appears quickly or you were not able to remove it, report the mold or mildew to management immediately.

Resident(s) understand and agrees that failure to do any of the enumerated actions in this addendum shall constitute both a material non-compliance with the rental agreement affecting health and a serious violation of the Rental Agreement. Resident will be financially responsible for all damages resulting from their failure to comply with this addendum.

Resident Signature \_\_\_\_\_ Date \_\_\_\_\_

Resident Signature \_\_\_\_\_ Date \_\_\_\_\_

Resident Signature \_\_\_\_\_ Date \_\_\_\_\_

Resident Signature \_\_\_\_\_ Date \_\_\_\_\_

Agent for Owner - Management Representative \_\_\_\_\_ Date \_\_\_\_\_





## SAMPLE MOVE IN & MOVE OUT INSPECTION REPORT

Schedule 7

Property: \_\_\_\_\_ Apt #: \_\_\_\_\_  
Resident(s): \_\_\_\_\_  
\_\_\_\_\_  
\_\_\_\_\_  
Move-In Date: \_\_\_\_\_ Date of M/O Inspection: \_\_\_\_\_

| ITEM                              | MOVE-IN CONDITION | MOVE-OUT CONDITION | CHARGES |
|-----------------------------------|-------------------|--------------------|---------|
| <b>KITCHEN &amp; DINING AREA</b>  |                   |                    |         |
| Floors                            |                   |                    |         |
| Walls/Ceiling                     |                   |                    |         |
| Cabinets                          |                   |                    |         |
| Range/Oven/Broiler Pan            |                   |                    |         |
| Hood/Filter Fan                   |                   |                    |         |
| Microwave                         |                   |                    |         |
| Refrigerator                      |                   |                    |         |
| Dishwasher                        |                   |                    |         |
| Disposal                          |                   |                    |         |
| Lights                            |                   |                    |         |
| Sink & Counters                   |                   |                    |         |
| Windows/Tracks/Screens            |                   |                    |         |
| <b>LIVING ROOM &amp; HALLWAYS</b> |                   |                    |         |
| Floors/Carpet                     |                   |                    |         |
| Walls/Ceiling                     |                   |                    |         |
| Lights                            |                   |                    |         |
| Windows/Tracks/Screens            |                   |                    |         |
| Drapes/Blinds                     |                   |                    |         |
| Fireplace                         |                   |                    |         |
| Ceiling Fan                       |                   |                    |         |
| Alarm Pads                        |                   |                    |         |
| <b>BATHROOM</b>                   |                   |                    |         |
| Floors/Carpet                     |                   |                    |         |
| Walls/Ceiling                     |                   |                    |         |
| Cabinets                          |                   |                    |         |
| Lights                            |                   |                    |         |
| Vent Fan                          |                   |                    |         |
| Sink & Vanity                     |                   |                    |         |
| Tub/Shower                        |                   |                    |         |
| Tile & Grout                      |                   |                    |         |
| Windows/Tracks/Screens            |                   |                    |         |
| Towel Bars                        |                   |                    |         |
| <b>BATHROOM 2</b>                 |                   |                    |         |
| Floors/Carpet                     |                   |                    |         |
| Walls/Ceiling                     |                   |                    |         |
| Cabinets                          |                   |                    |         |
| Lights                            |                   |                    |         |
| Vent Fan                          |                   |                    |         |
| Sink & Vanity                     |                   |                    |         |
| Tub/Shower                        |                   |                    |         |
| Tile & Grout                      |                   |                    |         |
| Windows/Tracks/Screens            |                   |                    |         |
| Towel Bars                        |                   |                    |         |
| <b>BEDROOM 1</b>                  |                   |                    |         |
| Floors/Carpet                     |                   |                    |         |
| Walls/Ceiling                     |                   |                    |         |
| Lights                            |                   |                    |         |
| Ceiling Fan                       |                   |                    |         |
| Windows/Tracks/Screens            |                   |                    |         |
| Closets/Doors                     |                   |                    |         |
| Drapes/Blinds                     |                   |                    |         |
| <b>BEDROOM 2/3</b>                |                   |                    |         |
| Floors/Carpet                     |                   |                    |         |
| Walls/Ceiling                     |                   |                    |         |
| Lights                            |                   |                    |         |
| Ceiling Fan                       |                   |                    |         |
| Windows/Tracks/Screens            |                   |                    |         |
| Closets/Doors                     |                   |                    |         |
| Drapes/Blinds                     |                   |                    |         |
| <b>BALCONY/PATIO/STORAGE</b>      |                   |                    |         |

I have inspected the above unit prior to occupancy and accepted it with the conditions noted. I understand further that upon vacating the above apartment, any charges will be assessed for cleaning/replacement or repairs required.

Resident Signature \_\_\_\_\_ Date \_\_\_\_\_

Resident Signature \_\_\_\_\_ Date \_\_\_\_\_

Resident Signature \_\_\_\_\_ Date \_\_\_\_\_

Resident Signature \_\_\_\_\_ Date \_\_\_\_\_

**MOVE IN & MOVE OUT INSPECTION REPORT***Schedule 7 - Cont. Pg 2***Cleaning and Repair Charges**

If prior to move out, you do not clean the items listed below and leave them in satisfactory working order, or if any items are missing or damaged to the point that they must be repaired or replaced, the following charges will be deducted from your security deposit. If your security deposit is insufficient to cover the charges, you will be billed for the balance. The prices given for the items listed below are estimates only. If the Owner incurs a higher cost for cleaning or repairing an item, you will be responsible for paying the higher cost.

Please note that this is not an all-inclusive list; you can be charged for cleaning or repairing items not represented on the list.

**ESTIMATE CLEANING & REPAIR CHARGES**

|                                                | <b>CLEANING</b>                    | <b>REPLACEMENT/REPAIR</b> |
|------------------------------------------------|------------------------------------|---------------------------|
| <b>KITCHEN</b>                                 |                                    |                           |
| Floors                                         | \$10 - \$50                        | \$750 - \$1,100           |
| Walls/Ceilings                                 | \$15 - \$30                        | (Entire Unit)             |
| Cabinets                                       | \$5 - \$15                         |                           |
| Range Top/Oven/Broiler Pan                     | \$15 - \$30                        |                           |
| Hood/Filter Fan                                | \$5 - \$15                         |                           |
| Microwave                                      | \$5 - \$15                         |                           |
| Refrigerator                                   | \$5 - \$15                         |                           |
| Dishwasher                                     | \$5 - \$15                         |                           |
| Disposal                                       | \$5 - \$15                         |                           |
| Lights                                         | \$5 - \$15                         |                           |
| Sink & Counters                                | \$5 - \$15                         |                           |
| Windows/Tracks/Screens                         | \$5 - \$15                         | \$35 - \$250              |
| Drapes/Blinds                                  | \$5 - \$15                         |                           |
| Washer/Dryer                                   | \$5 - \$15                         |                           |
| <b>LIVING ROOM, DINING AREA &amp; HALLWAYS</b> |                                    |                           |
| Floors                                         | \$10 - \$50                        | See Above                 |
| Walls/Ceilings                                 | \$15 - \$30                        |                           |
| Lights                                         | \$5 - \$15                         |                           |
| Windows/Tracks/Screens                         | \$5 - \$15                         | \$35 - \$250              |
| Drapes/Blinds                                  | \$5 - \$15                         |                           |
| Fireplace                                      | \$5 - \$15                         |                           |
| Alarm Pads                                     |                                    | \$150                     |
| Ceiling Fan                                    | \$5 - \$15                         |                           |
| <b>BATHROOM</b>                                |                                    |                           |
| Floors                                         | \$10 - \$50                        | See Above                 |
| Walls/Ceilings                                 | \$15 - \$30                        |                           |
| Cabinets                                       | \$5 - \$15                         |                           |
| Lights                                         | \$2 - \$10                         |                           |
| Sink & Vanity                                  | \$5 - \$15                         |                           |
| Tub/Shower                                     | \$5 - \$15                         |                           |
| Windows/Tracks/Screens                         | \$5 - \$15                         | \$35 - \$250              |
| Towel Bars                                     | \$15 - \$30                        |                           |
| <b>BEDROOM</b>                                 |                                    |                           |
| Floors                                         | \$10 - \$50                        | See Above                 |
| Walls/Ceilings                                 | \$15 - \$30                        |                           |
| Lights                                         | \$2 - \$10                         |                           |
| Windows/Tracks/Screens                         | \$5 - \$15                         | \$35 - \$250              |
| Drapes/Blinds                                  | \$5 - \$15                         |                           |
| Closets/Doors                                  | \$5 - \$15                         |                           |
| Ceiling Fan                                    | \$5 - \$15                         |                           |
| <b>OTHER</b>                                   |                                    |                           |
| Bulk trash                                     | \$10 per bag - \$25 per large item |                           |
| Cleaning of patio/storage                      | \$10 - \$30                        |                           |
| <b>KEYS/LOCKS/REMOTES</b>                      |                                    | <b>\$10 - \$100</b>       |
| Issued:                                        |                                    |                           |
| Apartment Keys:                                | _____                              | Gate Card #(s): _____     |
| Mailbox Keys:                                  | _____                              | Remote #(s): _____        |
| Fitness/Pool/Gate Keys:                        | _____                              | Code #(s): _____          |
| Other Keys:                                    | _____                              | Garage Remote #: _____    |

**Items left in apartment will be charged according to # of bags/bulk items and \$25.00 per man hour (1 hour Minimum).**

Initial(s): \_\_\_\_\_ Date: \_\_\_\_\_ Apt. #: \_\_\_\_\_





## SAMPLE LEASE FILE FOLDER CHECKLIST

Property: \_\_\_\_\_  
Resident(s): \_\_\_\_\_  
\_\_\_\_\_  
\_\_\_\_\_

Apt #: \_\_\_\_\_  
\_\_\_\_\_  
\_\_\_\_\_  
\_\_\_\_\_

### Left Side

\_\_\_\_\_ Resident Communication Log  
\_\_\_\_\_ Schedule 7 - M/I & M/O Inspection Report  
\_\_\_\_\_ Lease File Folder Checklist  
\_\_\_\_\_ Sure Deposit (if applicable)  
\_\_\_\_\_ All Legal Notices (if applicable)

### Right Side

\_\_\_\_\_ Lease  
\_\_\_\_\_ Schedule 2 - Community Policies  
\_\_\_\_\_ Schedule 3 - Parking/Towing/Garage Addendum  
\_\_\_\_\_ Schedule 4 - Pet Addendum  
\_\_\_\_\_ Schedule 5 - Crime Free Lease Addendum  
\_\_\_\_\_ Schedule 6 - Mold & Mildew Addendum  
\_\_\_\_\_ Guest Card  
\_\_\_\_\_ Verify Social Security  
\_\_\_\_\_ Copy of Photo ID (Upon Rental Only)  
\_\_\_\_\_ Application  
\_\_\_\_\_ Rental Criteria/Occupancy Standards Addendum  
\_\_\_\_\_ Deposit Agreement / Move In Cost Sheet  
\_\_\_\_\_ Renter's Insurance Addendum  
\_\_\_\_\_ Pay Stubs  
\_\_\_\_\_ Rental Entered into Yardi  
\_\_\_\_\_ Credit Approval

**Note:** Forms are listed in order from top to bottom. Resident Conversation Record should be on top. All renewal letters, notices and correspondence should be in chronological order with most current on top. Keep this checklist in file folder on bottom left.

\_\_\_\_\_  
Agent preparing file Date

\_\_\_\_\_  
Manager File Approval Date



**Apt #:** \_\_\_\_\_

---

---

---

[illegible]

|  |  |  |
|--|--|--|
|  |  |  |
|--|--|--|